

MEMORANDUM OF UNDERSTANDING (MOU)

This **Memorandum of Understanding** ("MoU") is entered into, between :

Acolyte Technologies Private Limited, a company incorporated under the **Companies Act, 2013**, bearing [CIN: **U80903RJ2021PTC074781**] and PAN : **AAVCA1643F**, having its registered / principal office at SB -113, Galaxy Avenue, Tonk Road, Bapu Nagar, Jaipur, Rajasthan, 302015, hereinafter referred to as the "**First Party**".

AND

Silent Space Llp, a Company organization duly registered and existing under the applicable laws of India bearing, CIN : **ACQ-0972** , having its principal office at **139 A 2RF, GHATKOPAR, INDUSTRIAL ESTATE, Mumbai, Ghatkopar Police Station, Mumbai, Mumbai, India- 400086**, here in after referred to as the "**Second Party**."

The details of the Parties are provided in **ANNEXURE - 2** to the MoU.

WHEREAS, the **First Party** is a company that provides consultancy services including those related to Digital Marketing, Social Media Marketing and Management, New Firm/Company Registration, Compliances, Website/App design and Development, E-Commerce and Software Development, Logo Designing, Content Writing, M.S.M.E. Registration, ISO Certification, FSSAI Certificate, G.e.M. Registration, Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service Application, Startup India Registration, Consultancy and Application for Startup India Certificate, Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service and MSME Certificate Application, Tax Exemption under Startup India, Skill India and other business services.

WHEREAS, the **Second Party**, is a company engaged in **Acoustic consultancy, soundproofing solutions, and noise control services** and desires to avail specified services provided by the **First Party**, and thus, is voluntarily entering into the present MoU with the **First Party**.

1. DEFINITIONS

- a) **Commencement Date:** The date of signing of this Memorandum of Understanding ("MoU") for consultancy and/or application services, including but not limited to fund consultancy, certification consultancy, or any other related services mutually agreed between the Parties.
- b) **Date of Completion:** The date on which the term of the MoU expires.

- c) **Intellectual Property:** Includes existing and future intellectual property in the nature of registered or unregistered rights to any and all patents, copy rights, Seed funding, and any other confidential and proprietary information belonging to the parties subject to the same are not available on public domain and/or not classified as Intellectual Property by the parties.
- d) **MoU:** The present Memorandum of Understanding signed and executed between the First Party and the Second Party through authorized representatives duly backed by the resolutions to this effect.
- e) **Parties:** The First Party and the Second Party have been collectively referred to as Parties in the present MoU.
- f) **Authority :** Any government department, incubator, statutory body or entity empowered to evaluate or issue approvals under the relevant scheme.
- g) **Scope of Work:** The list of services the First Party undertakes to provide to the Second Party in accordance with the present MoU for assistance/ submission of the application for program/scheme namely **Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service**

2. OBJECTIVE

- a) This MoU sets out the general framework of cooperation between both the Parties.
- b) This MoU identifies the roles and responsibilities of both the Parties towards each other.
- c) Both Parties undertake that they will undertake any activity under this MoU in compliance with all applicable laws, rules and regulations and principles set forth by the Government of India.
- d) Both Parties understand and agree that the present MoU does not restrict the Parties from entering into similar agreements or otherwise associating with any other public or private individuals, agencies, or organisations.
- e) The Second Party acknowledges that this communication or service does not constitute a confirmation of funding. The First Party will assist in preparing your documents and business structure, ensuring compliance and suitability for fundraising as per industry standards.

3. SCOPE OF WORK

The First Party agrees to assist the Second Party in pursuing for program/scheme namely **Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service** to that end, the Parties will undertake the following activities:

- a) The First Party will collect the data for the above documents for the above-mentioned services from the Second Party and the Second Party agrees to provide the data through e-mail. It is clarified that the First Party shall not be responsible for the

authenticity of the data furnished by the Second Party in any manner whatsoever.

- b) The Second Party agrees to provide approval/necessary changes through to the first party via email written communication to the First Party through on their official email addresses as mentioned at the end of this MoU. The Second Party shall immediately communicate with the first party for any change in the data provided by the second party but before the final submission of the application. The First Party shall file and submit the Application based on data provided by the Second Party. The First Party shall not be responsible for any inaccuracies, deficiencies, or subsequent changes in the data furnished by the Second Party.
- c) The First Party agrees to make the necessary changes for the above-mentioned documents as required by the Second Party as per the requirement of the work assigned to the First Party. Second Party hereby agrees and assures the First Party to provide all the necessary information and declaration as may be required by the respective authorities / Government Bodies for the compliances as may be required in completion of the assignment However, if the Second Party fails to provide the desired information, the First Party shall not be held liable for the success of the Application and/ or assigned work.
- d) The Second Party understands and agrees that the changes the First Party makes will entirely depend on the instructions the Second Party provides to the First Party with immediate effect.
- e) In addition, to the above, The First Party also agrees to do the following on behalf of the second party:
 - i. Vetting of Documents pertaining for the program/scheme namely **Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service** submitted before the Appropriate Authorities/ Government Bodies etc.
 - ii. Necessary inputs for facilitation of the documentation as may be required for processing for the program/scheme namely **Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service.**
 - iii. Compiling of Documents as furnished by the Second Party for processing for the program/scheme namely **Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service** as mentioned hereinabove.
 - iv. Filing and Submission of application for the program/scheme namely Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service(in the name of the Second Party)
 - v. Grooming of Founder(s), if shortlisted for the interview by an incubator/investor.

Provided that the First Party shall undertake the activities mentioned in Clause 3(a) and

Clause 3(b) only if the Second Party provides necessary assistance to it.

Provided further that the First Party shall endeavour to complete the activities assigned to it in Clause 3(a) and Clause 3(e) within 15 working days from the submission of data from the second party via email.

4. COVENANTS

- a) The Second Party agrees to pay to the First Party the amount listed in **ANNEXURE - 1** to the MoU as consideration for services rendered. The payment shall be made on such date and time as is prescribed in **ANNEXURE - 1**. The financial discipline shall be strictly adhered to and failing to pay the complete payment within seven (7) days of assignment of the work. The present MoU stands terminated without any further reference.
- b) The Second Party agrees to grant permission to First Party for using its registered logo and name for marketing activities through oral and written mediums, including but not limited to official website and social media platforms.
- c) The Second Party understands and agrees that the First Party will only act as a consultant/service provider to the Second Party.
- d) The Second Party understands that the First Party is not and cannot be responsible for ensuring successful completion of the activities listed in Clause 3 and is only providing consultancy and/or application services to the Second Party.
- e) The First Party does not guarantee sanction of funds under any scheme or issuance of any certificate by any authority. The First Party shall provide consultancy and support services for one complete application cycle, until the application is either sanctioned/approved or formally rejected by the concerned authority, or for a maximum period of twelve (12) months from the Commencement Date, whichever is earlier, without any additional consultancy charges. Any subsequent applications, re-submissions, or extensions beyond this period shall be subject to mutually agreed terms and applicable fees.
- f) The Second Party agrees that the consultancy fee is non-refundable, and any amount paid towards GST and/or any other tax shall not be refundable in any manner whatsoever.
- g) The Parties acknowledge that the support mentioned in Clause 3(iii), 3(iv), and 3(v) is advisory in nature and doesn't guarantee successful selection, funding, or approval.

5. TERM

This MoU shall remain in force for one complete application cycle, until the relevant application (whether relating to a grant, certificate, or any other consultancy service under this engagement) is either sanctioned/approved or formally rejected by the concerned authority, or for a maximum period of twelve (12) months from the Commencement Date, whichever is earlier, unless extended by mutual written consent of both Parties.

6. COORDINATION

To carry out the aims of this agreement, the Parties will appoint an appropriate person(s) to

represent its organization and to coordinate the implementation of activities and share the details of such person with the other party with immediate effect.

7. CONFIDENTIALITY

- a) Each party agrees that it shall not, at any time, after executing the activities of this MoU, disclose, to any third party, any information about these activities or the affairs of business or method of carrying on the business of the other without the consent of both parties.
- b) Neither Party shall disclose any Confidential Information of the other Party to any third party without the prior written consent of the other, whether such information was obtained before, during, or after the term of this Agreement.
- c) Each Party shall immediately return or destroy Confidential Information of the other Party upon request or at the termination or expiry of the present Agreement.
- d) This section shall survive the expiration or termination of this Agreement.

8. TERMINATION OF THE MOU

- a) The relationship covered by this MoU will be terminated upon completion of the agreed-upon period or in the event of completion of services stated under the Scope of Work.
- b) Either party may terminate the present MoU by providing a written notice of 28 days to the other party.
- c) Termination of this MoU shall not affect or prejudice any rights, obligations, or liabilities of either Party that have already accrued prior to the date of termination, including but not limited to payment obligations of the Second Party and confidentiality obligations of both Parties.
- d) Either party may terminate the present MoU if the other party has materially breached one or more of the terms of the present MoU.

9. INDEPENDENT CONTRACT

The Second Party agrees that all services will be rendered by the first party as an independent contractor and that this MoU does not create an employer-employee relationship between the Second Party and the First Party.

10. INTELLECTUAL PROPERTY

- a) Each Party is the sole owner of its own Intellectual Property, including but not limited to its copyrights, Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Services, databases, patents, software, graphics, text, and other proprietary materials, subject to the same not being available in the public domain and/or not classified as Intellectual Property by the Parties.
- b) Nothing contained in this MoU, nor any activity undertaken herein, shall transfer the ownership of any Intellectual Property from one Party to another.

- c) **Each Party retains ownership of all materials, templates, documents, designs, data, software, or content developed, owned, or used by it prior to the execution of this MoU. Use of such pre-existing materials by the other Party shall not confer any rights of ownership or license unless expressly agreed in writing.**
- d) This section shall survive the expiration or termination of this MoU.

11. NO WAIVER

A failure or delay in exercising any right, power, or privilege in respect of this MoU will not be presumed to operate as a waiver, and a single or partial exercise of any right, power or privilege will not be presumed to preclude any subsequent or further exercise, of that right, power or privilege or the exercise of any other right, power, or privilege.

12. COMMUNICATION

All notices, demands, and other communication under this agreement in connection herewith shall be written in the English Language and shall be sent to the last known official address, email, or fax of the concerned party. Any notice shall be effective from the date on which it reaches the other party. Both parties agree to provide the communication details immediately as they are updated/changed.

13. MEDIA ENGAGEMENTS

If any person deliberately or intentionally communicates in writing or orally directly or indirectly on social media platforms through any posts/ publishes/ tweets and endorses the wrong and defamatory articles, letters, communication, messages etc against the Company or its employees or management. It is further clarified that media includes social media, print media and electronic media like LinkedIn, X, Instagram, You Tube etc. This shall be treated as a material breach of the terms and conditions of this MoU and this MoU shall stand terminated with immediate effect. The Company shall reserve its right to seek damages/compensation or initiate civil and/or criminal proceedings solely on their own cost, risk and expenses.

14. AMENDMENTS

This MoU is subject to changes and either party may request the other party for necessary changes to this agreement. Any amendment, modification, revision, or supplement to this MoU shall be valid only if made in writing and digitally or physically signed by authorized representatives of both Parties.

No verbal agreement, correspondence, or informal communication shall be deemed to modify or waive any provision of this MoU.

15. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of India, without giving effect to any choice of law or conflict of law provisions. The Parties consent to the exclusive jurisdiction of the courts of Jaipur, Rajasthan, India. In case of any dispute, the parties agree to resolve the matter through arbitration. The other party is at liberty to participate in the arbitration proceedings virtually, and all documents related to the proceedings may be exchanged electronically.

16. LIMITATION OF LIABILITY

- a) The Second Party undertakes that if it initiates any suit against the First Party or its affiliates or representatives, the First Party shall not be liable to the Second Party for any direct, indirect, incidental, consequential, special, punitive, or exemplary damages. The foregoing limitations and exclusions will apply regardless of whether the cause of action arises in contract, in tort or otherwise and notwithstanding the failure of the essential purpose of any remedy or negligence. The First Party Shall not be responsible for the claims initiated by any government bodies, private individual, firm, company and/or any person for the loss, damages or money suits filed against the Second Party for any reasons whatsoever.
- b) In the event applicable law does not allow the limitation of liability as set forth above, the limitation will be deemed modified solely to the extent necessary to comply with applicable law.
- c) This section (limitation of liability) shall survive termination or expiration of this MoU.

17. DISPUTE RESOLUTION

- a) Any claim, dispute or difference relating to or arising out of this MoU shall be referred to a sole arbitrator by the First Party and the decision of the Sole Arbitrator shall be final and binding on the Parties. The arbitral proceedings shall be conducted in accordance with Arbitration and Conciliation Act, 1996.
- b) The parties agree that the disputes arising out of this MoU shall be decided through Fast Track Procedure in accordance with applicable rules, subject to the right of the parties to request the Arbitral Tribunal for oral hearing. It is clarified that any party may after giving prior notice to the other party request the Arbitral Tribunal to conduct the arbitral proceedings through normal procedure and not through the Fast Track Procedure. The notice shall specify the reasons for making such a request.
- c) The seat and venue of arbitration shall exclusively be at Jaipur, Rajasthan, India. The other party is at liberty to participate in the arbitration proceedings virtually, and all documents related to the proceedings may be exchanged electronically.
- d) The arbitration award shall be final and binding on the parties.

18. FORCE MAJEURE

Neither Party shall be held liable for any failure or delay in the performance of its obligations under this MoU if such failure or delay is caused by force majeure events beyond its

reasonable control, including but not limited to acts of God, natural disasters, war, civil commotion, government actions, strikes, lockouts, epidemics, pandemics, or technical failures. The affected Party shall promptly notify the other Party in writing of the occurrence of such event. If the force majeure event continues for a period exceeding sixty (60) days, either Party shall have the right to terminate this MoU without any liability, and no Party shall be entitled to claim any compensation or damages from the other in respect thereof.

IN WITNESS WHEREOF, and intending to be legally bound, the Parties have duly executed this Agreement as of the date first written above.

ANNEXURES

ANNEXURE - 1 : FEES AND PAYMENT TERMS

ANNEXURE – 2 : LEGAL DETAILS OF THE PARTIES

ANNEXURE – 1

FEES AND PAYMENT TERMS

for the Copyright Consultancy Service, Make In India Consultancy Service, Nidhi SSP Consultancy Service, Patent Consultancy Service, Tax Exemption Certificate Consultancy Service

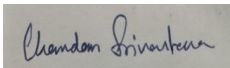
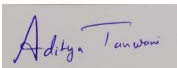
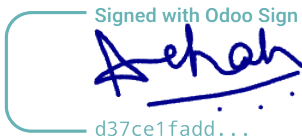
a) **Fee Structure :**

The consultancy fee payable by the Second Party to the First Party shall be as follows:

- **Consultancy Fee: ₹2,36,000/-**(Rupees **Two Lakh Thirty-Six Thousand** only) including 18% GST, payable **in advance before initiation of the service**.
 - **Subsequent Payments (if applicable):** In the event that any additional payment becomes due during the course of the same service—whether on account of procedural requirements, government or statutory charges, or any other reason mutually agreed upon between the Parties—such payment shall be made by the Second Party **within the prescribed timeline communicated by the First Party**. The First Party shall inform the Second Party of any such subsequent payment **in advance through official written communication** (including email or other agreed modes of correspondence).
- b) The Second Party expressly acknowledges and agrees that the sanctioning, issuance, or disbursement of any grant, certificate, license, or approval under the applied scheme/service (such as Startup India, GST, MSME, or any similar scheme) is solely subject to the evaluation, decision, and discretion of the concerned authority, incubator, or governing body. The First Party shall extend its best efforts in preparing and supporting the Second Party, but shall not be held liable in case the application is rejected, deferred, or approved in a manner different from what is expected.

ANNEXURE – 2

LEGAL DETAILS OF THE PARTIES AGREED AND ACCEPTED BY

	FIRST PARTY		SECOND PARTY
Name	Acolyte Technologies Private Limited		Silent Space LLP
Operational Address	SB 113, Galaxy Avenue, Tonk Road, Bapu Nagar, Jaipur, Rajasthan, 302015		C 301 Balaji darshan flats, Opp wageshwari soc, VIP road, karelibaug, Vadodara, Gujarat, 390022
Authorized Person	Chandan Shrivastav	Aditya Tanwani	Aayush Shah
Title	Branch Manager	BDA	Partner
Email ID	info@startupflora.com		caaayush1824@outlook.in
Contact Number	+91 9033039152	+919033039172	9484468025
Sign with Stamp			
Date	17/12/2025	17/12/2025	23/12/2025